

CHAPTER 15.

An Act to vary the rates of contribution and the rates and periods of benefit under the Unemployment Insurance Acts, 1920 and 1921, and otherwise to amend those Acts.

[1st July 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) While this section is in force unemployment benefit under the Unemployment Insurance Acts, 1920 and 1921, shall be at the weekly rates of fifteen shillings for men and twelve shillings for women, or such other weekly rates as may be prescribed, instead of at the rates provided by section one of the Act of 1921, and paragraph (6) of the Second Schedule to the principal Act shall have effect as originally enacted, instead of as amended by the Second Schedule to the Act of 1921.

Rates of
unemploy-
ment benefit.
10 & 11
Geo. 5. c. 30.
11 Geo. 5.
c. 1.

(2) This section shall come into operation on the thirtieth day of June, nineteen hundred and twenty-one, and shall continue in force until the expiration of the deficiency period.

2. Section two of the Act of 1921 (which makes provision with respect to contributions) shall have effect as if the rates set out in the Schedule to this Act were substituted for the rates set out in the First Schedule to that Act, and as if "fourpence" were therein substituted for "twopence," and the provisions of that section providing for increases in the rates of contribution shall continue in force until the expiration of the deficiency period or the first day of July, nineteen hundred and twenty-three, whichever is the later, and the contribution to be made out of moneys provided by Parliament shall be increased accordingly.

Rates of
contribution.

3.—(1) If it appears to the Minister that having regard to all the circumstances of the case it is expedient in the public interest that a person who has in either of the special periods mentioned in the Act of 1921 received unemployment benefit for periods amounting in the

Period of
unemploy-
ment benefit.

aggregate to sixteen weeks, should be allowed to receive benefit for any further periods within that special period, the Minister may, subject as hereinafter provided, authorise the payment of benefit to that person within that special period for further periods not exceeding in the aggregate six weeks, and where the Minister so authorises the payment of benefit sections three and four of the Act of 1921 shall have effect as if in relation to that person there were substituted for sixteen weeks such number of weeks as is equal to sixteen increased by the number of weeks in respect of which payment of benefit is authorised under this subsection.

Any application under this subsection for the allowance of further benefit may, if the Minister thinks fit, be referred to a local employment committee.

(2) Where any person in respect of whom contributions were credited under section forty-one of the principal Act, being a person to whom section three of the Act of 1921 did not apply, is at any time during either of the special periods not entitled to receive unemployment benefit by reason of the provisions of paragraph three of the Second Schedule to the principal Act, the Minister may authorise the payment of unemployment benefit to that person during that period as if he were a person who had received unemployment benefit during that period for periods amounting in the aggregate to sixteen weeks, and for the purpose of qualifying any such person to receive unemployment benefit under this subsection, but for no other purpose, there shall be treated as having been paid in respect of him such number of contributions as are sufficient so to qualify him.

(3) As from and after the thirtieth day of June, nineteen hundred and twenty-one, paragraph (1) of the Second Schedule to the principal Act (which provides that unemployment benefit shall be payable in respect of each week of any continuous period of unemployment after the first three days of unemployment) shall have effect as if the words "the first week" were therein substituted for the words "the first three days," and paragraph (b) of subsection (2) of section seven of the principal Act (which defines a continuous period of unemployment) shall have effect as if the words "one week" were therein substituted for the words "three days."

(4) The power of the Minister to make regulations under section thirty-five of the principal Act shall include power to make regulations providing, in the case of any persons who are insured at the commencement of this Act, for the transition from the provisions of the Unemployment Insurance Acts, 1920 and 1921, to the provisions of those Acts as amended by this Act.

4. Section five of the Act of 1921 (which authorises the Treasury to make advances for the purpose of discharging the liabilities of the unemployment fund under the principal Act as amended by the Act of 1921) shall have effect as though the reference therein to the Act of 1921 included a reference to this Act, and as though twenty million pounds were substituted for ten million pounds as the limit on the amount of the advances under that section which may be outstanding at any time.

Amendment
as to
Treasury
advances.

5. The power of the Minister under section eighteen of the principal Act to make special orders approving or making special schemes shall not be exercised during the deficiency period :

Suspension
of power to
make special
schemes.

Provided that this section shall not apply in any case where before the eighth day of June, nineteen hundred and twenty-one, a draft scheme appearing to the Minister to be complete has been submitted to him and application has, before that date, been made to him to approve the scheme in accordance with the provisions of section eighteen of the principal Act.

6.—(1) Where the number of the contributions paid in respect of any person since the beginning of the last preceding insurance year (whether that year ended before or after the passing of this Act) is less than twenty, then, notwithstanding any provision to the contrary in the Unemployment Insurance Acts, 1920 and 1921, that person shall not be entitled to receive unemployment benefit unless he complies with the conditions specified in subsection (3) of section three of the Act of 1921.

Disqualifi-
cation for
unemploy-
ment benefit.

(2) This section shall have effect as from and after the third day of July, nineteen hundred and twenty-one.

7. Section forty-four of the principal Act (which makes provision with respect to benefit for the first twelve months of the operation of that Act) is hereby repealed as from the thirtieth day of June, nineteen hundred and twenty-one.

Repeal of
s. 44 of
10 & 11
Geo. 5. c. 30.

Provision for
temporary
payment of
benefit.

8. Where it is not practicable to ascertain in the case of any person who would, if the provisions of this Act relating to disqualification for the receipt of unemployment benefit and repealing section forty-four of the principal Act had not passed, have been entitled to receive such benefit, whether he does or does not satisfy the requirements of section three of the Act of 1921, the Minister may, during the period of six weeks next after the passing of this Act, authorise payment of benefit to that person as if he were a person who had complied with those requirements.

Application
of National
Insurance
Acts to
certain mem-
bers of the
forces.

9.—(1) Where, after the passing of this Act, any person—

- (a) being a man of the Naval Reserves, Army Reserve, or Air Force Reserve is called into actual service or called out for permanent service, as the case may be, on an occasion of great emergency ; or
- (b) enlists as a soldier in the Regular Army or as an airman in the Air Force on any such occasion as aforesaid for service during the emergency ;

he shall, during the period of four months from the date on which he is so called into actual service or called out for permanent service or enlists, as the case may be, or during the period between that date and the date on which he is discharged, whichever period is the shorter, be treated for the purposes of section forty of the principal Act, as amended by any subsequent enactment, as if he were a man of the Naval Reserves, Army Reserve, or Air Force Reserve, as the case may be, undergoing training and in receipt of pay out of the moneys provided by Parliament for the Navy, Army, and Air Force services.

(2) Section forty-one of the principal Act shall not apply in the case of any person to whom the preceding subsection applies if he is discharged within the aforesaid period of four months, and, where any such person is not discharged within that period, the sum payable in respect of him under the said section on his discharge shall be reduced by the amount of any contributions paid in respect of him during that period under the Unemployment Insurance Acts, 1920 and 1921, and those contributions shall be deemed not to have been made in respect of him.

(3) In this section references to discharge include references to transfer to the reserve in the case of a seaman, marine, soldier, or airman who on the completion of his term of service is transferred to any reserve.

10. Section seven of the Unemployment Insurance Act, 1920 (which prescribes statutory conditions for receipt of unemployment benefit), shall have effect as if to subsection (1) there were added the following:—

Amendment
of 10 & 11
Geo. 5. c. 30.
s. 7.

Provided that, where it is held that an insured contributor has not fulfilled the statutory condition that he is capable of and available for work, but unable to obtain suitable employment, the application of such insured contributor for unemployment benefit shall, if he renews his application, be reviewed from time to time at the expiration of periods of not less than six weeks.

11. Part II. of the First Schedule to the principal Act as amended by the Second Schedule to the Act of 1921, shall have effect as though there were inserted therein after paragraph (c) the following new paragraph—

Amendment
of Part II.
of First
Schedule to
10 & 11
Geo. 5. c. 30.

“(cc) employment otherwise than in a temporary
“ capacity as a member of any police force
“ to which the Police Act, 1919, applies;”

Geo. 5. c. 30.

9 & 10

and as though there were inserted therein at the end of paragraph (d) thereof the following words: “and
“ provided further that in the case of employment under
“ a local or other public authority the Minister may, if
“ any enactment relating to the superannuation of persons in that employment provides for the aggregation of
“ service in that employment under two or more employers, whether the service has been continuous or
“ not, treat such service for the purposes of the foregoing
“ provision as if it had been service in the same
“ employment,” and paragraph (ii) of paragraph (d) of the said Part II. is hereby repealed.

Geo. 5. c. 46.

12. If it appears to the Minister that the payments authorised by the rules of a society or other association to be made to its members when unemployed are to be made at intervals and during periods which are reasonable, and that the aggregate amount of such payments during a period of twelve months will be equivalent to the aggregate of the amounts which would have been

Amendment
of s. 17 of
the principal
Act.

necessary to satisfy the requirements of proviso (a) to subsection (1) of section seventeen of the principal Act, the Minister may, notwithstanding anything in the said proviso, make or continue an arrangement with that society or association under the said section.

Provision
with respect
to payment
of unemploy-
ment benefit
during
certain
periods.

13. Where, under arrangements made by the Minister of Labour with the consent of the Treasury for the purpose of dealing with any emergency, payments have been made (whether before or after the passing of this Act) to any persons by way of unemployment benefit without due proof of the fulfilment of any one or more of the statutory conditions or otherwise than in accordance with the requirements of the enactments relating to the payment of unemployment benefit, the payments so made shall, for the purposes of the provisions of the principal Act, be deemed to be payments of unemployment benefit duly made, but without prejudice to the provisions of subsection (5) of section twenty-two of that Act.

Amendment
of s. 9 (4) of
11 & 12
Geo. 5. c. 1.

14. Subsection (4) of section nine of the Act of 1921 (which contains a saving with respect to the provision for unemployment benefit which may be required to be made by an association for the purposes of section seventeen of the principal Act) shall have effect as though the third day of July, nineteen hundred and twenty-two, were therein substituted for the third day of November, nineteen hundred and twenty-one, and as though the words "under the principal Act as originally enacted" were substituted for the words "if this Act had not passed" where those words secondly occur.

Application of
Act to Ireland.
10 & 11 Geo. 5.
c. 87.

15. For the purposes of section six of the Government of Ireland Act, 1920, this Act shall be deemed to be an Act passed before the appointed day.

Interpreta-
tion and
short title.

16.—(1) In this Act—

The expression "principal Act" means the Unemployment Insurance Act, 1920:

The expression "Act of 1921" means the Unemployment Insurance Act, 1921:

The expression "the deficiency period" means the period between the passing of this Act and the date certified by the Treasury to be the date on which the unemployment fund, in the opinion

of the Treasury, having regard to all the circumstances of the case, is solvent:

Provided that the unemployment fund shall not be deemed to be solvent while any advances made by the Treasury for the purpose of discharging the liabilities of the unemployment fund are outstanding.

(2) This Act may be cited as the Unemployment Insurance (No. 2) Act, 1921, and shall be construed as one with the principal Act, and shall be included among the Acts which may be cited together as the Unemployment Insurance Acts, 1920 and 1921.

SCHEDULE.

Section 2.

ORDINARY RATES OF CONTRIBUTIONS BY EMPLOYED PERSONS AND EMPLOYERS.

From the employed person in each week—

In the case of men	-	-	-	-	-	-	7d.
„ „ women	-	-	-	-	-	-	6d.

From the employer in each week—

In the case of employed persons being men	-	8d.
„ „ „ women	-	7d.

RATES IN CASE OF PERSONS UNDER 18.

From the employed person in each week—

In the case of boys	-	-	-	-	-	3½d.
„ „ girls	-	-	-	-	-	3d.

From the employer for each week—

In the case of employed persons being boys	-	4d.
„ „ „ girls	-	3½d.
